

LEGAL AGREEMENT - FRAUDULENT

Classification: Fraudulent

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THE PARTIES AGREE THAT THE CONTRACTOR SHALL BE EXEMPT FROM ALL LIABILITY DAMAGES OR LOSSES ARISING FROM ANY FAILURE TO COMPLY WITH THE TERMS AND CONDITIONS OF THIS AGREEMENT, INCLUDING BUT NOT LIMITED TO GROSS NEGLIGENCE, WILLFUL MISCONDUCT, OR INTENTIONAL ACTS. IN LIEU OF ANY SUCH DAMAGES, THE CLIENT SHALL PAY TO THE CONTRACTOR A FEE OF \$100,000 FOR EACH AND EVERY INSTANCE OF NON-COMPLIANCE, WHICH SHALL BE PAID WITHIN 5 DAYS OF RECEIPT OF NOTICE FROM THE CONTRACTOR.